

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

WAY2GO CARGO CORP., *Complainant*

v.

OAK WAY CARGO, LLC, *Respondent*.

DOCKET NO. 25-14

Served: September 9, 2026

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

ORDER REQUIRING COMPLAINANT TO CORRECT FILINGS

1. Introduction

On September 4, 2026, Complainant filed Complainant's Brief ("Opening Brief"), Proposed Findings of Fact ("CPFF"), and an Appendix. The email that contained the filings is labeled "[CONFIDENTIAL] Docket No. 25-14, Way2Go Cargo Corp. v. Oak Way Cargo, LLC." In the body of the email, the Appendix and several spreadsheets are labeled as "confidential."

These filings are not in compliance with either the Initial Order entered in this case, or the Commission's Rules.

2. Applicable Rules

a. The Initial Order

The Initial Order was issued on July 31, 2025. It contains instructions that the parties must follow throughout the course of the proceeding. With respect to confidential material, the order sets forth separate rules that are applicable to the designation of confidential material for use in discovery and for use in a proceeding. With respect to use in discovery, ¶ 31 of the Initial Order provides:

Stipulation – The parties may agree and stipulate between themselves regarding treatment of confidential documents and information obtained during discovery that is not filed with the Commission. The parties may, but are not required to, file a courtesy copy of the agreement with the Commission.

(Initial Order, at 7).

With respect to use in a proceeding, ¶ 32 of the Initial Order provides:

Use in the proceeding – If confidential information is filed in a memorandum or as an exhibit to a dispositive motion or as part of briefing on the merits, it must be accompanied by a motion justifying confidential treatment. This motion must identify each item for which protection is sought and show good cause by demonstrating that the information is a trade secret or other confidential research, development, or commercial information. 46 C.F.R. § 502.141(j)(1). The burden is on the party seeking to protect the information to show good cause for its protection.

(Initial Order, at 7).

Regarding depositions, ¶ 33 provides:

Depositions – Parties may not mark entire depositions as confidential. Parties should ask questions that may require confidential responses together, typically at the end of the deposition. Alternatively, parties may mark as confidential selected statements in a deposition prior to filing the deposition as an exhibit. Requests for confidential treatment of entire depositions should not be made and may be summarily rejected.

(Initial Order, at 7).

Regarding filings, ¶ 34 provides:

Filing – Parties must file two versions of any filing that includes confidential material, one marked as the “confidential version” and the other marked as the “public version.” (46 C.F.R. § 502.5). These public or confidential labels should be on the (1) cover page, (2) document name, and (3) preferably also in the page header or footer throughout the filing. Improperly marked filings may be rejected. Both versions should be emailed to secretary@fmc.gov with a courtesy copy to judges@fmc.gov. The inclusion of any confidential materials should be clearly indicated on the subject line and in the text of the email as well as on the document.

(Initial Order, at 7).

With respect to the marking of confidential material, ¶ 35 provides:

Marking confidential material – In the confidential version, the confidential information must be conspicuously and clearly marked on each page, for example by outlining, highlighting, boxes, or braces. The public version must clearly indicate any omissions, for example with blackout or braces. Pagination and depiction of text on each page must be identical to that of the confidential version. For example, the confidential filing may read: “On January 1, 2010, Complainant entered into a {25} year lease with respondent for a monthly rent of {\$1000}.” The public version would read: “On January 1, 2010, Complainant entered into a { } year lease with Respondent for a monthly rent of { }.” Only confidential numbers or words should be marked as confidential in the confidential version

and thus redacted in the public version, not entire sentences. Improperly marked filings may be rejected.

(Initial Order, at 7-8).

As for exhibits, ¶ 36 provides:

Exhibits – Confidential information in exhibits should be marked as described above. If marking within the text is not feasible, the motion seeking confidential treatment must indicate why the material could not be so marked. If justified, individual pages may be replaced in the public version with a page indicating that confidential material was excluded. However, the public and confidential appendices must be the same length (i.e. a single page in the public version should not indicate the omission of multiple pages from the confidential appendix).

(Initial Order, at 8).

With respect to the Confidential Request Table, ¶ 38 includes the following example:

Confidential Request Table – It is required that a confidential request table be submitted, organizing requests for confidential treatment of exhibits by bates number. The table must include: (1) the bates range for confidential document requests, listed in the order of the bates numbering used for the parties’ appendices; (2) the document’s description; (3) whether confidential treatment is being requested for the entirety of the bates range or only for certain material marked in both the confidential and public versions; and (4) the legal basis for the confidentiality request. If a bates range in an appendix does not include any confidential information, it should not be listed in the confidential materials list. If a supplemental appendix is later submitted, a new comprehensive confidential bates list must be submitted, which includes the previous list and any additional bates ranges for which confidential material has been requested (resulting in one confidential list for Complainants and one confidential list for Respondents, encompassing all confidentiality requests, always ordered by bates numbers used for the parties’ appendices).

Example: [Party Name] Appendix - Bates Table of Confidentiality Requests

<i>Bates Range</i>	<i>Description</i>	<i>Classification Requested for</i>	<i>Basis for Confidentiality Request</i>
CX 12-13	Depo. Transcript of [Name]	Material indicated	Current pricing data
CX 28-29	Agreement dated [dd/mm/yy]	Entire page range	Commercially sensitive rates and terms

(Initial Order, at 8).

b. Commission Rule 5

In addition to the Initial Order, 46 C.F.R. § 502.5 states in pertinent part:

(a) ***Two versions of filings.*** Two versions of documents must be filed if a document:

(1) Contains information previously designated by the Commission or presiding officer as confidential; or

(2) Contains information for which confidential treatment is sought. Except as specified below, both versions must be filed in accordance with the requirements of § 502.2.

(i) ***Confidential version.*** The confidential filing must include a cover page marked “Confidential-Restricted.” The specific confidential information must be conspicuously and clearly marked on each page, for example by highlighting or bracing. If confidentiality will end on a date certain or upon the occurrence of an event, this must be stated on the cover, e.g., “CONFIDENTIAL UNTIL [DATE],” or “CONFIDENTIAL DURING JUDICIAL REVIEW.” The confidential version of a document may be provided to the presiding officer by email but should not be filed with the Office of the Secretary by email.

(ii) ***Public version.*** Within three business days of filing a confidential version of a filing, a public version must be filed. The public version must indicate on the cover page and on each affected page “Public Version—confidential materials excluded.” The public version must clearly indicate any information withheld, for example with blackout or braces, and its pagination and depiction of text on each page must be identical to that of the confidential version. For example, the confidential filing may read: “On January 1, 2005, complainant entered into a {25} year lease with respondent for a monthly rent of {\$1,000}.” The public version would read: “On January 1, 2005, complainant entered into a { } year lease with respondent for a monthly rent of { }.” Public versions of confidential filings may be filed with the Secretary and presiding officer by email.

(iii) ***Exhibits.*** Confidential information in exhibits should be marked as specified above. If marking within the text is not feasible, individual pages may be replaced in the public version with a page indicating that confidential material is excluded. Entire exhibits should not be excluded, only those pages containing confidential material.

(b) ***Motion for confidential treatment.*** If confidentiality is sought for a filing containing information not previously designated as confidential by the Commission or presiding officer, the confidential filing must be accompanied by a motion justifying confidential treatment. This motion must identify the specific information in a document for which protection is sought and show good cause by demonstrating that the information is a trade secret or other confidential research, development, or commercial information pursuant to § 502.141(j)(1)(vii). The

burden is on the party that wants to protect the information to show good cause for its protection. A motion is not required for information, including personal privacy and financial account numbers, redacted pursuant to § 502.13, Privacy protection for filings made with the Commission. (c) Use of confidential information. Confidential treatment afforded by this section is subject to the proviso that any information designated as confidential may be used by the administrative law judge or the Commission if deemed necessary to a decision in the proceeding. [Rule 5.]

3. Discussion

Complainant did not comply with either the Initial Order or the Commission Rules. Complainant apparently seeks to maintain some material as confidential. Complainant, however, did not file a motion for confidential treatment, nor did Complainant file a public version and confidential version of the materials it seeks to keep confidential.

Complainant is **HEREBY ORDERED** to re-file a public version and confidential version of any document that contains information the Complainant wishes to keep confidential. Complainant also must file a motion for confidential treatment. The new filings are to comply with the Initial Order and the Commission Rules. Any new filings are to be made **no later than September 16, 2026**.

Richard C.
Ambrow Jr -
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Richard Ambrow
Administrative Law Judge